Encyclopedia of Women & Islamic Cultures

Marriage Practices: 18th to early 20th century: Central Asia

(6,343 words)

Introduction

The emirate of Bukhara (1756-1920), the khanates of Khiva (1511-1920) and Kokand (1709-1876), and later the general governorship of Turkestan (1867-1917), appeared in the territory of Central Asia between the eighteenth and early twentieth centuries. The population consisted primarily of Turkic- and Iranian-speaking people, most of whom were sedentary; some, though, were seminomadic and nomadic (Bartold 1963, Shoniyozov 2001). Their *ʿādāt* (customs and traditions), including those around marriage, differed between the sedentary, seminomadic, and nomadic peoples. The main legal basis for the sedentary population was shariʿa; the seminomadic and nomadic population relied more on *ʿādāt*. However, local customs and ethical norms were also important for the sedentary population.

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Age Of Marriage

The age of marriage, the agreement of bride and bridegroom, the presence of witnesses, the payment of *mahr* (and *qalin* or *kalym*), the unity of faith, the relationship as noted in Qur'an, equality (*kufuʿ*), and mental health were taken into account in the process of marriage in Central Asia [al-Marginoniy 2001].

Under shariʿa as interpreted in the region in this period, the age of marriage was twelve for boys and nine for girls. However, with physical and mental development taken into consideration, more often boys of 15 to 20 and girls of 10 to 15 were qualified as pubescent or "of age" (Ishanova 1991).

Matchmaking

In Central Asia, people other than the bridegroom and the bride participated in the marriage process, adhering to local customs and traditions. In particular, those associated with the bridegroom were responsible for finding a girl by asking around and participating in matchmaking. This process required the time and presence of several people, but primarily that of the bridegroom's parents, who selected their son's bride. If a suitable girl was found, the matchmaking began, which was organized by the bridegroom's oldest aunts or the neighborhood *kayvoniy* (a female helper who managed ceremonies like weddings or funerals, or *dasturkhonchi* (female wedding organizer) (Sukhareva 1976). *Kanizaks* (female slaves) or women who had formerly been members of the harem served as matchmakers for khans and high-class representatives. They found the most beautiful girls of the khanate and went matchmaking. If the bride's side disagreed with the match, she was taken by force (ARBC no. 9320, Abdullayeva 2004). Local elders also interfered in the process. Some gave young female family members to a khan as a *kanizak* (female slave) and became relatives of the khan. After performing certain ceremonies, the *kanizak* was taken to the khan's castle by the designated harem women (ARBC no. 9320).

Very rarely, men were involved in this process. This was usually when the wedding ceremony was between important members of the elite or between individuals of two countries. If the latter, the role of the main matchmaker (or ambassador) was given to senior political representatives.

Securing the agreement of the prospective bride was the next step in the matchmaking process. Typically, her parents or close relatives made the agreement despite her own wishes. After this step, the future bridegroom could see his bride for the first time. In accordance with shariʿa, clerics permitted such meetings (Salokhiddin 1999). But the couple could not meet alone. Each side came with its own *wakīl* (agent), a role filled by the older women relatives.

It was rare for the bridegroom and bride to meet before their wedding because local customs meant that the bride risked staining her honor if she met the bridegroom outside of marriage. Pre-marriage meetings were held only if the bride and bridegroom were from distant cities or countries. Occasionally, the bridegroom met his bride only after the wedding, in the tabernacle (Uzbek, *chimildiq*). These restrictions on the bride and bridegroom meeting before their marriage placed additional responsibility on the matchmaker to assess the bride's behavior, beauty, and mentality.

The wali sometimes sought to arrange the marriage of an adolescent girl without her agreement (KKA 125/2/35). According to records, the girl learned of her impending marriage from other people. Under Hanafi practice, if the girl stood in silence, it meant her agreement with the marriage (al-Marginoniy 2001). The girl conveyed her refusal to the qadi either directly or by her *wakīl*. Women actively participated in the internal affairs of the society during this period. It was not conspicuous as it was "under the net," but it had a great influence. Women influenced close relatives such as husbands, fathers, brothers, and children. Of course, a woman's age, role in society, literacy, and wisdom were taken into consideration. The role of mother was especially significant.

In the process of marriage, the qadi also took into consideration that an adolescent bridegroom could cancel the marriage that had been arranged by his wali. A qadi would decide in this case (al-Marginoniy 2001). First, the qadi defined the puberty of the girl, determined after her menstruation (*ḥaiḍ*) had begun. If her menstruation was confirmed, she was considered an adolescent (KKA 125/2/35). Once this status was

defined, the girl could not be forced to marry, and the agreement was cancelled. The girl could also break the marriage agreement if her wali died, because the other relatives (brother, uncles, mother, or qadi) might have an influence on her decision (al-Marginoniy 2001).

Per local custom, while seeking marriage for an orphaned girl, her wali should treat her as if he were her own father. He must not offend her and force her into marriage. Most importantly, he should not agree to an oppressive marriage (KKA 125/2/589).

Dowry (*Mahr*)

After matchmaking was complete, the quantity of *mahr* was determined in accordance with local customs and shari'a. Muslims in Central Asia followed the Sunni Hanafi madhab (school of law), which stipulated that the minimum *mahr* was ten dirhams; it did not stipulate a maximum (al-Marginoniy 2001). Ten dirhams equaled one dinar (Sodiq and Yusuf 2011); and one dinar equaled 2.4 grams of gold (Ahrorov 1996). It has been said that during the period of the Prophet, one could buy a shield for ten dirhams (Salokhiddin 1999). But no matter what period, one should give 2.4 grams of gold as the minimum price of *mahr*. This could be changed depending on the currency. For example, at the beginning of the twentieth century, ten dirhams was equal to two rubles (Muntahab ul-masoyil 2002). At the end of eighteenth to nineteenth centuries, one gold coin from the Bukhara khanate equaled four rubles (Davidovich 1964).

In keeping with local customs, *mahr* was given in different forms according to the bridegroom's status. In some areas, it was given as money; in others, as real estate. The bride's virginity was also taken into consideration. A *bokira*'s (virgin) *mahr* was twice as much as a *sayyiba*'s (nonvirgin). The marriage document, called a *khaṭṭ-i nikāḥ* (Uzbek, *xatt-i nikah*), or *'aqdnama*, was formalized as an agreement, attended by the bride's wali (her guardian, typically, her father or grandfather, brother, or male relative), the bridegroom's father (or a male relative), or the bridegroom himself; the bride rarely participated in this ceremony.

The Face Veil

Until the early twentieth century in Central Asia, it was customary for girls to wear special face veils (*parandja*) starting around the age of ten to prevent men from seeing the face of a possible future wife. A *ra'īs* controlled women's visibility in public, instructing them not to reveal their face in public (Bakirov 1967). The *parandja* was a long, typically gray robe. Included with the *parandja* was the *chachvon* (or *chimmat*), a face covering made from the tail hair of the horse (Ma'rufov 1981). Sedentary city women wore *parandja*. In villages, only women from rich families could afford them. Most village women instead wore a large shawl and covered their faces with a robe, coat, jacket, or clothing from their children (Nalivkin and Nalivkina 1886). *Cho'ri* (servant maids) were not required to wear *parandja* (Obidov 1929). The lives of seminomadic or nomadic women were more liberal than sedentary women. They were not always "under the net" and could ride horses and adapt to any condition. They wore large shawls but did not cover their faces (Dukhovskaya 1913).

Arranged Marriages

Girls and boys could be betrothed when they were five to six years old, although sometimes this ceremony —called *fotikha* or *beshikkerti* and involving paying *qalin* (bride-price) to the bride's family—was held when they were only babies (Likoshin 1916). The boy's parents would pay *qalin* till the children reached puberty. The agreement could be made orally or in writing. Sometimes, if another boy's parents gave the girl more *qalin* when she reached puberty, the agreement would be cancelled, and the girl's parents would return the *qalin* that had been paid by the first boy's parents, according to the agreement. The first boy's parents could appeal to the qadi (judge) if they disagreed with the agreement's cancellation. Few such appeals exist in the archives of Bukhara, Khiva, and Kokand khanates; many more exist in the Chancellery of the General Governorship of Turkestan (Chancellery of Turkestan General Governorship 369/1/21/1).

The bride and bridegroom could also be engaged by *fotikha* at puberty (based on documents related to an exhibition at the Museum of Local Lore, Kokand). If the engagement was made without the girl's consent, the party that disagreed with the engagement could appeal to the qadi, who could cancel it. Typically, the engagement lasted between one and two years, but it could last longer than that if the bridegroom was unable to pay *mahr* or *qalin*. It sometimes lasted as long as five years (Khiva Khanate Archive [KKA] 125/2/646). If *fotikha* lasted more than five years, the bride's family—her father, brother, or any male relative—could appeal to the qadi or the khan. The khan would pass the appeal to the *qushbegi* (first minister). At the khanate of Khiva, appeals were handled by the *yasavulbashi* (head chamberlain), who provided a written report with the results of the review. Often these issues resulted in a positive outcome (KKA 125/2/646).

Levirate and sororate marriage was common in Central Asia between upper-class representatives and well-known lineages (sayyid, khoja) because a woman's social background had a bearing on the social status of her husband and children, and in some family trees of khans, mothers also played a major role (Tolib 2012). Women of the sayyid lineage (said to be descended from the Prophet Muhammad) were highly appreciated. Marriage among relatives helped to ensure any land and resources would stay within the family, maintaining its integrity (Central State Archives of the Republic of Uzbekistan [TsGA RUz] 323/1/115, 323/1/823). Orphaned boys and girls of the middle- and lower classes could also participate in levirate marriages if they had some property.

The bride and bridegroom had to be of equal social and financial status and be of the same generation, profession, and religion (a requirement known as *kufū*). A woman of high status who married a man of low status (Uzbek, *qoracha*) lost all the privileges of her high status. Although such marriages were uncommon, a man is recorded as having falsely claimed he held the rank of sayyid or khoja to marry a woman of high status (Abu Raihan al-Biruni Centre for Oriental Manuscripts [ARBC] no. 3858, no. 10992/17). Unfortunately, available archives have limited details about the incident. What is known is that a person named Pahlavon Khoja was told to bring two witnesses to support his claim to equality to a *sayyida* woman named Mukarramoy (ARBC no. 10992).

Marriage Disputes

In Central Asia, according to tradition, the khan or high-class representative heard a woman's application about marriage and family disputes. These cases could be seen during the Temurid (1370-1500), Sheibanid (1500-1601), and Ashtarkhanid (1601-1756) eras. For example, when a woman from Okhangaron (a district in Tashkent province) was given triple *ṭalāq* by her husband in the 16th century, she asked Keldimuhammad Khan to reconcile her with her husband. She sent several applications in one month (Vosifiy 1979).

Applications written by women were typically answered quickly, but it depended on the seriousness of the issue. The abovementioned application was one of the most serious forms. Thus, the khan gave the woman a special signature and sent her to Suyunchkhoja Khan (1503-25), under whom her husband worked. It should be noted that the woman did not give the signature to a special representative, but brought it to the khan personally.

European scholars who visited Central Asia in the second half of the nineteenth and early twentieth centuries also noted information about the women's applications to the khan and qadi. Particularly in the Bukhara and Khiva khanates, the governor received applications within a certain time frame (according to records, within four hours). Women were among this population, submitting their applications about family and marriage disputes (Vamberi 2003). The petitioners entered one by one, came closer to the khan, and argued their applications. The qadi also participated in this ceremony. Family conflicts often ended with the couple reconciling.

When the General Governorship of Turkestan came under Russian imperial control, a new sphere emerged in social, economic, and judgment policy. The judicial system followed shari'a norms and customs. Per the charter of 1867-86, the qadis worked for sedentary people and the *biy* (tribal leaders) worked for nomads. Justices of the peace and regional judges were also used. In the charter of 1867, issues addressed by the qadis and *biys* were to be formally recorded. This also included women's petitions regarding marriage (e.g., Central State Archives of the Republic of Uzbekistan [TsGA Ruz] 233/1/11, 437/1/3). During the Russian Empire, women increasingly submitted applications to qadis, *biys*, and justices of the peace. Disputes mostly related to the *mahr*, *qalin*, the husband's inheritance, *ṭalāq*, and *nafaqa* (maintenance).

Marriage Contracts

Marriage contracts in Bukhara, Khiva, and Kokand khanates were traditionally written by one formulary so differed only slightly. Contracts showed the bride's name and her father's name, the bridegroom's name and his father's name, the quantity of the *mahr*, the order of its payment, and how *mahr* was defined by wali from the bridegroom's father. Next, the marriage was noted as valid as determined by shari'a laws in the participation of witnesses. The qadi then confirmed the union with his seal (ARBC no. 10992, no. 8887; Bukhara Regional Library no. 080). Some documents included *rivayyats* related to a particular situation. The date, month, and year of this event were documented. This differed from the Bukhara and Kokand marriage *'aqdnama* in Khiva khanate, which was formalized as a trade document (*bayaa*). As per the Hanafi clerics, marriage should be connected with the word "*bayaa*" (al-Marginoniy 2001).

Marriage contracts were normally registered in the mosque or at the judge's office (the Uzbek *qāḍīkhana* or Arabic *dār al-qaḍā'*) closest to the couple's living quarters. Registration documents were numbered, then posted to special notebooks by the qadi's vicegerent. The vicegerent divided the documents into special chapters and titled each based on a particular sequence to assist in retrieving at a later date (Ibrohimov 1982).

The qadi received a *nikahana*, a special payment for legalizing the marriage (Bakirov 1967). This was different in Bukhara, Khiva, and Kokand khanates. For example, the charge for marrying for young girls who had hit puberty was ten tanga (coins). The charge for marrying widows, however, was five tanga at the

beginning of the twentieth century in Bukhara emirate (Urinbayev, Djurayeva, and Gulomov 2007). At the beginning of the nineteenth century, one gold coin was equal to 21 silver coins in the Bukhara khanate (Davidovich 1964). In the Kokand khanate, the mufti and the qadi agreed the *nikahana*.

Often copies were produced of the marriage documents and one copy was left in the *qāḍīkhana*, while the second one was taken by an individual designated by the bridal couple or the bride's wali. Of the documents preserved in the archives, most pertain to people of high- and middle-class status. After registration, the marriage khutba (sermon) was read. This was done either at the mosque or the bride's home (ARBC no. 9476).

In Central Asia, each step in the marriage process was done with the participation of a qadi. Marriage also required the presence of witnesses. The Prophet, after all, had stated, "A marriage without witnesses was not marriage," thus emphasizing the vital role of those participating in the practice (al-Marginoniy 2001). Witnesses had to be at least two men or a man and two women. The criteria for a witness were: (1) to be free, (2) to have good mental health, (3) to have passed puberty, and (4) to be Muslim. When a Muslim man married a *dhimmī* (the "protected"; non-Muslim) woman, two *dhimmī* men should be witness to the marriage. However, no need was paid to any words against the union, specifically against the Muslim bridegroom (Maqsudkhoja 1996). The witness could be the wali of the bride or bridegroom, the qadi, the imam of the mosque, or any relatives of the bride or bridegroom. Women as witnesses were not given the same consideration as male witnesses. Therefore, a man needed to be present as a witness in all instances. This was often seen in the documents of the Khiva khanate. Witnesses were to hear from both the bride and bridegroom. It was made clear, if the couple were to have any conflicts later, the witnesses were to go to *qāḍīkhana*.

Mahr and *Qalin*

Mahr was given either expediently (*mahr-i muʿajjal*) or it was postponed (*mahr-i muvajjal*). Postponed *mahr* could be given after the husband's death or after the couple's divorce. Both types of *mahr* were used, but postponed *mahr* was more common because it was more comfortable for people from the middle and lower classes, showing how *mahr* related not only to social as well as economic life. Archival documents provide information about petitions through which divorced women or widows appealed their postponed *mahr* from a qadi (TsGA Ruz F. I-125, op-2, file no. 646; F.I-126. In. 1, file no. 1701).

If the husband died, the postponed *mahr* was given from his inheritance (ARBC no. 9491). It was recognized as *haqq-i nikah*, such as *mahr* or *nafaqa*, payments to which she was entitled under the marital contract. In some cases, the husband tried to leave property to his wife as a part of her *mahr* by special *wathīqa*, a special document created in *qāḍīkhanas* and collected by the qadi's office staff. (Some of the collected materials were included in special books called *majmūʿ-i wathāʾiq* and constitute valuable historical documents.) This document specified that the estate was only for his widow, and other claims were considered (Karimov and Sartori 2009). Of course, it related to only high-class representatives, serving to avoid any quarrels or disputes that could appear among successors in future.

Some members of the higher classes gave a *choʾri* (slave), household goods such as pots and dishes, or land as *mahr* (Kazakov 1987). The cost of both any movable property and real estate was calculated then noted in the *ʿaqdnama* (marriage contract). In the event of divorce or death, the wife might choose to take her

mahr in cash equivalent. In the Tashkent region, in Kokand khanate, it was known for a woman to be given a house with an entrance hall (Otakhojaev 1995). This was no doubt far more useful for the woman than money or other items.

According to the traditions of the Khiva khanate, *mahr* was determined before the marriage but a wife could receive *mahr* only in the event of divorce or her husband's death (ARBC no. 8412). In some ways, then, *qalin* (bride-price) was preferable to *mahr*. In some documents from the Khiva khanate, *mahr* and *qalin* were mentioned as one item. Traditionally, the bridegroom gave the bride's parents *qalin* in the form of money, cattle, or other things such as cloth, pots, dishes and so on (Budagov 1871), although the form of *qalin* was not fixed. A bride's wali could demand money or property (dowry) as a *qalin* from the bridegroom. There was no law in shari'a that rejected this demand (ARBC no. 4798). *Qalin* was given upon a woman's first marriage, and it was more common among the seminomadic population than among the sedentary population. It was Turkic custom, not part of the Islamic religious tradition (Kamp 2006, 45). There were also some superstitions surrounding *qalin*. For example, in the Tajik village of Kokand khanate, baby boys were bathed when they were 18 days old, during their *chilla*, the 20-day period when baby boys were isolated from the external environment. This meant they would pay less *qalin* than girls, who were given their first bath when they were 22 days old (Nalivkin and Nalivkina 1886).

The issue of *qalin* was also mentioned in the manuscripts of the khan. There was information about buying *kanizaks* and *cho'ri* (female slaves and servants) in the letters of the Bukhara rule Amir Khaydar (1800-26). According to his order, Musobek was rewarded with 2,000 dirhams, one *cho'ri*, and one *g'ulom* (slave). This was mentioned as a local tradition (ARBC no. 1961).

The elites of different communities intermarried. For example, some of the Kokand khans married Kyrgyz women (Troitskaya 1968). Members of the sedentary groups that lived near the border became relatives by marriage with nomads. In the Karmana region of the Bukhara khanate, Uzbek and Tajik girls were given in marriage to Kyrgyz (or Kazakh) people (*Turkistanskii vedomosti*, 26 July 1883). For the right *qalin*, Uzbek and Tajik girls were also given in marriage to men of the Amudarya section of the General Governorship of Turkistan, located on east side of the Amudarya river associated with the Khiva khanate. Because the desert and uplands of the Karmana region were unsuitable for agriculture, inhabitants subsisted only on cattle-raising and were typically quite impoverished. A *qalin* of 300-500 rubles could be central to survival for a poor family (*Turkistanskii vedomosti*, 26 July 1883).

The *mahr* which, by contrast to the *qalin*, was very much a part of Islamic doctrine, was the woman's personal property, not her parents'. Only if she rejected it by her own discretion could her relatives use it, although the pre-pubescent girl's *mahr* could be used by her wali without her consent (al-Marginoniy 2001). A wali, typically her father, grandfather, brother, or other close male relative, was not required to ask the girl for her consent to marriage. Once a girl or boy hit puberty, she or he could reject the marriage that had been arranged by the wali. An adolescent girl's consent was given by her silence or smile.

The marriage of pre-pubescent girls was fairly common in Central Asia, though most of these marriages were between orphaned girls or boys. The bride's wali and the bridegroom's father or any close male relative signed the marriage contract. In accordance with the contract, one part of *mahr* was given before the marriage; the other part was given later (Bukhara Khanate Qushbegi Archive [BKQA] 126/1729).

Wedding Party

As stated, witnesses had to participate during the marriage. The main reason for this was to announce the marriage to the community, distinguishing haram (forbidden; Uzbek, *harom*) marriage from halal (acceptable; Uzbek, *halol*) marriage. A wedding party followed the marriage announcement. The marriage was a holy bond in Islam. In Central Asia, the family was viewed as sacred, and at the base of a family's sacredness was the marriage bond and the wedding party. Weddings were sanctified through religious laws and local traditions. Superstitions, also part of tradition, were involved in the wedding. If the bride was a virgin, her wedding night was considered a holy night. A married couple's first sexual intercourse proved the bride's virginity. Again, witnesses were involved. The witness was typically the bride's elder aunt or the wife of her uncle, called a *yanga* (or *yenga*). A *yanga* was a kind and clever mother, preferably with many children. A woman without a child or divorced wife could not be a *yanga* because this was considered to bring misfortune to the bride. The *yanga* would also have educated the bride before the marriage on the subtle features of sexual intercourse and psychologically prepared her for this moment.

To effect sexual intercourse, after the wedding ceremony, the bridegroom, bride, and the *yanga* went to a special sheltered area. The corner of this shelter concealed the *chimildiq* (tabernacle) with a special white fabric. The *chimildiq* was considered a holy place and, in accordance with shari'a, the bridegroom and bride were left alone together (*xilvati sahiha*) (leaving the bridegroom and bride alone without witnesses). There was no natural or emotional barrier to disrupt sexual intercourse (Sodiq and Yusuf 2011). The only person other than the couple who entered the *chimildiq* was the *yanga*. Because the bridegroom and bride were warned of the evil eye and possible bad intentions from others, they stayed 40 days in the *chimildiq* (also known as *chillakhana* or *chilla*). During intercourse, it was believed that the bride's hymen was broken and she would bleed from her genitals, staining a special white fabric. The *yanga* took the stained fabric to the mother of the bridegroom or a female relative of the bride. The bride kept the fabric, without washing it, till her death, since it proved her virginity at the time of marriage. As mentioned, *mahr* was given according to the bride's virginity. If anyone subsequently doubted her virginity on marriage, she could furnish the fabric as proof. This, however, was done only when absolutely necessary.

Obligations In Marriage

A legal marriage came with obligations for the couple. If the husband had not provided *mahr* before the marriage, or had given only a portion of it, the wife could refuse sexual intercourse. She could also travel without her husband's consent. The husband, however, could not take his wife on a long journey. As noted in the marriage contract, sexual intercourse was allowed only after giving *mahr*. But even after signing the *mahr-i muvajjal*, a husband could not take his wife abroad. A bride's parents could also make a voucher, prohibiting their son-in-law from taking their daughter abroad. This voucher was signed as a special document (Urinbayev et al. 2001). Some men from the lower classes signed a *mahr* contract with the bride's father, agreeing to pay *mahr* within a specified period or to work for their future father-in-law (ARBC no. 9490, no. 7799). There are accounts in the archives of women divorcing their husbands. In those cases, the *mahr* was returned (*hulu* or *khul'* divorce) (BKQA 126/1; ARBC no. 1729).

If the bridegroom fulfilled all conditions of the marriage *'aqdnama*, the bride was obligated to obey him. This meant doing household duties, respecting her husband's family, keeping the house clean, using products and money wisely, and taking care of the children. If her husband allowed it, she could visit her parents once a week.

Childcare was a mother's main duty. Even if the couple divorced, the woman was responsible for looking after the children until they became adults. This was especially important in the case of daughters because they needed to be looked after and brought up by their mothers or maternal grandmothers until they began menstruating. This was done because women could teach the daughters household duties and bring them up much better than men could. Once daughters reached puberty, they were taken by their fathers (KKA 125/2/582). Some religious leaders believed that fathers could better take care of their daughters and protect them from getting involved in inappropriate relationships (Maqsudkhoja 1996). The father's duty was to give his daughter to a suitable man and supply her with money and some housekeeping goods. A mother, after all, could not participate publicly in society and thus would not be able to fulfill these responsibilities as effectively. The father was obligated to ask around about a potential bridegroom, determine the cost of *mahr*, and take *qalin*.

The husband had also a duty to give *nafaqa* (financial support) to his wife and any underaged or disabled children. In Central Asia, *nafaqa* could be paid daily, monthly, or in full (ARBC no. 1386, BKQA 126/1/1701). It was done by mutual agreement between the couple, based on a mix of shariʿa and local customs and traditions. Daily *nafaqa* was usually set by the qadi. If the husband went abroad, he had to pay *nafaqa* for the days that he spent away from his wife. If he did not leave this *nafaqa*, the wife could collect subsistence money under the instructions of the qadi. After his return, the husband repaid the sum paid on his behalf. If he did not return, or if he died, the subsistence was taken from his estate. The Khiva khanate's archive includes complaints submitted to the *yasavulbashi* (head chamberlain) against men who had not paid *nafaqa* to their wives or children (KKA 125/2/646).

Death and Divorce

During the *ʿidda* (waiting period) after a woman's husband uttered *ṭalāq* (divorce) or died, she was allowed *nafaqa*. The period of *ʿidda* was three months and ten days for a woman receiving *ṭalāq* and four months and ten days for a widow (Salokhiddin 1999).

In accordance with shariʿa, the couple could reconcile if the husband had uttered *ṭalāq* once or twice. But if he had declared *ṭalāq* three times to his wife, it was final. The woman remained in her husband's house during *ʿidda*. During this time, it was determined if the wife was pregnant. The ʿulamaʾ gave *riwāyāt* (narrations) stating that women should make themselves attractive to their husbands during *ʿidda* in an effort to "reheat" the relationship. Sexual intercourse, however, was prohibited. If divorce was inevitable, a woman was given *mahr* after *ṭalāq* (ARBC no. 9492). Sometimes, the woman who got *ṭalāq* was given both *mahr* and *nafaqa*.

A woman was expected to observe *ʿidda* also when her husband died. The mourning period lasted nine to eleven months, and was done to honor the woman's husband, their children, and the life that they had shared together. After *ʿidda*, the woman could remarry. Some women did not want to remarry but often faced pressure from others to do so. For example, in the Kamot region of the Bukhara khanate, a woman by the name of To'xtaoy was pressured by Burkhon Khoja. When, in 1875, she complained to Bukhara's amir, Sayyid Muzaffar (1860-85), about this pressure, the khan forwarded the complaint to the *qāḍīkalon* of Bukhara and told him to investigate it carefully. He sent him a special decree or *mubaraknama* (Astanova 1990).

The seminomadic population had a custom called *alengerlik* (or *amongarlik*) (Otakhojaev 1995). According to this custom, a widow was expected to marry her husband's brother or another male relative of his (sororate). If the woman refused, she was forced to return the *qalin* that her husband had paid, and her children and property were also taken away. The new husband could be much younger than her; archives mention a woman compelled to marry a boy of nine (TsGA RUz 21/1/64).

Available sources do not convey how many women in Central Asia married only once. Documents related to inheritance do show that, more often than not, two wives were entitled to portions of the estate (ARBC no. 9490; Kokand Khanate Archive 1043). Other documents show that members of the urban elite had several wives (*Turkistanskii vedomosti* 1883). The nomad population did not have this custom.

Temporary Marriage

Although the Hanafi madhab holds that the Prophet Muhammad considered temporary (*mutʿa*) marriages to be haram, *muwaqqat* marriages—a practice quite similar to *mutʿa* marriage (Marginoniy 2001, Sodiq and Yusuf 2011)—have been recorded.

The practice was common among certain social groups, such as traders (Borns 1848). Among traders from Kokand who made their business in Kashgaria, this type of marriage was called *choʾkan*, a word also used to describe a divorced woman. Widows or divorced women agreed to temporary marriage as it prevented an "immoral" environment. It also took into consideration the conditions and requests of the period.

Mutʿa referred, more specifically, to a woman who did not have sexual intercourse during her marriage—that is, the marriage was not consummated—and who received *ṭalāq* without taking *mahr*. In this case the woman's *mahr* was determined by one of the verses of the Qurʾan: "If you told *ṭalāq* to your wife without giving *mahr* in the marriage and did not have sexual intercourse, you should supply her with what fabric your means can afford" (Sodiq and Yusuf 2011, Q. 2:236). The fabric mentioned in the Qurʾan might be a dress, shawl, or robe costing half the amount of the *ṭalāq* given to the bride after sexual intercourse. Some clerics determined the quantity of *mutʿa* as five dirhams or half of the *mahr* (Marginoniy 2001).

Conclusion

The difficulties of reconstructing the history of Central Asian women—their participation in social, political and economic life, and their position and role in society—in the eighteenth and nineteenth centuries can be attributed primarily to the absence of any historical works about them or written by them. It is possible, however, to recover some of this history from archival documents and manuscripts on family and marriage relations. Archival evidence suggests, for example, that Central Asian women had very specific roles in the family but that these varied with the family's lifestyle, stratum, economic condition, and literacy.

Religious factors, together with local traditions and customs, influenced marriage practices. As in much of the rest of the Islamic world, women were considered an important part of society, even if their participation in that society was not always visible. All the analyzed sources and documents mentioned above reinforce that in Central Asia, women's role in society became more active after marriage.

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